

- (i) Failing to confer in person, by telephone, or by letter with an opposing party or attorney in a reasonable and good faith attempt to resolve informally any dispute concerning discovery, if the section governing a particular discovery motion requires the filing of a declaration stating facts showing that an attempt at informal resolution has been made.

In addition, CCP §2031.310(h) provides that “[t]he court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.”

Here, the court finds that reasonable sanctions are warranted in the reduced, but reasonable amount \$3,566.00.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2507898	AMERICAN EXPRESS NATIONAL BANK VS STORER	MOTION TO SET ASIDE

Tentative Ruling: No tentative ruling. Hearing will be conducted on Wednesday ,August 5, 2026 at 8:30 a.m. in Department PS2.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2509122	RODRIGUEZ VS DEPARTMENT OF MOTOR VEHICLES	HEARING ON WRIT OF MANDATE

Tentative Ruling: Denied.

Respondent to submit proposed judgment within 5 days of this order and provide notice pursuant to CCP 1019.5.

Petitioner, Corina T. Rodriguez, seeks a writ of mandate commanding DMV to set aside its orders suspending her driver’s license upon finding Petitioner had violated the provision of the Vehicle Code prohibiting the operation of a motor vehicle while under the influence of alcohol and refusal to submit to a blood alcohol test. Specifically, Petitioner challenges the DMV’s July 12, 2025, order suspending or revoking Petitioner’s privilege to operate a motor vehicle and the subsequent decision by the DMV on September 25, 2025, sustaining the suspension or revocation of Petitioner’s driving privilege, which became effective on October 4, 2025.

On December 11, 2025, Petitioner filed a Petitioner for Writ of Mandate with this Court (Code Civ. Proc., § 1094.5) to set aside DMV’s order of suspension.

Administrative Record

The complete Administrative Record (“AR”) consists of approximately 87 pages of documents in a single volume of documents. (See Notice of Lodging Certified Administrative Records.)